



CHAPTER 79.

An Act to amend the Trading with the Enemy Acts, 1914. A.D. 1915.
[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Section two of the Trading with the Enemy Amendment Act, 1914 (hereinafter referred to as the principal Act), which relates to the payment to the custodian of dividends, interest, and profits payable to or for the benefit of enemies, shall extend to sums which, had a state of war not existed, would have been payable and paid in the United Kingdom to enemies—

Payment of dividends, &c. payable to enemy.
5 & 6 Geo. 5.
c. 12.

(a) in respect of interest on securities issued by or on behalf of the Government or the Government of any of His Majesty's Dominions or any foreign Government, or by or on behalf of any corporation or any municipal or other authority whether within or without the United Kingdom; and

(b) by way of payment off of any securities which have become repayable on maturity or by being drawn for payment or otherwise, being such securities as aforesaid or securities issued by any company ;

and in the case of such sums as aforesaid (other than sums in respect of the payment off of securities issued by a company) the duty of making payments to the custodian and of requiring payments to be made to him and of furnishing him with particulars shall rest with the person, firm or company through whom the payments in the United Kingdom are made, and the said section shall apply accordingly, and as if for references therein to the date of the passing of the principal Act there were substituted references to the date of the passing of this Act.

(2) Where the custodian is satisfied from returns made to him under section three of the principal Act that any such securities as aforesaid (including securities issued by a company)

A.D. 1915. — are held by any person on behalf of an enemy, the custodian may give notice thereof to the person, firm or company by or through whom any dividends, interest or bonus in respect of the securities or any sums by way of payment off of the securities are payable, and upon the receipt of such notice any dividends, interest or bonus payable in respect of, and any sums by way of payment off of, the securities to which the notice relates shall be paid to the custodian in like manner as if the securities were held by an enemy.

(3) For the purposes of this section "securities" includes stock, shares, annuities, bonds, debentures or debenture stock or other obligations.

Notification
of bank
balances,
deposits, or
debts due to
enemies.

2.—(1) Subsection (1) of section three of the principal Act, which requires returns to be made to the custodian of property held or managed for or on behalf of enemies, shall apply to balances and deposits standing to the credit of enemies at any bank, and to debts to the amount of fifty pounds or upwards, which are due, or which, had a state of war not existed, would have been due, to enemies, as if such bank or debtor were a person who held property on behalf of an enemy, and as if for references to the passing of the principal Act there were substituted references to the passing of this Act.

(2) The duty of making returns under the said subsection as so amended shall extend to companies as if the expression "person" included company, and if any company fails to comply with the provisions of that subsection as so amended every director, manager, secretary, or officer of the company who is knowingly a party to the default shall, on summary conviction, be liable to a fine not exceeding one hundred pounds, or to imprisonment with or without hard labour for a term not exceeding six months, or to both such a fine and imprisonment, and in addition to a further fine not exceeding fifty pounds for every day during which the default continues.

(3) The custodian shall keep a register of all property returns whereof have been made to him under section three of the principal Act as amended by this section, and such register may be inspected by any person who appears to the custodian to be interested as a creditor or otherwise.

Invalidity of
assignment of
debts by
enemies or
transfers of
shares in
company, &c.

3. Sections six, seven, and eight of the principal Act shall apply as if the expression "enemy," where used in those sections, included any person or body of persons who is an enemy or treated as an enemy under any proclamations relating to trading with the enemy for the time being in force:

Provided that the said sections six and eight shall apply as respects persons who were not enemies, nor treated as enemies, under the proclamations in force on the nineteenth day of November nineteen hundred and fourteen, with the substitution of references to the nineteenth day of July nineteen hundred

[5 & 6 GEO. 5.] *Trading with the Enemy Amendment* [CH. 79.]
Act, 1915.

and fifteen for references to the said nineteenth day of November, A.D. 1915.
and of references to the date of the passing of this Act for
references to the date of the passing of the principal Act, and
except in cases where a licence has been duly granted exempting
any particular transaction from the provisions of any of the said
sections.

4. No action shall be brought or other proceedings com- Limitation on
menced by a company the books and documents of which are powers of
liable to inspection under subsection (2) of section two of the certain com-
Trading with the Enemy Act, 1914, unless notice in writing has panies to
previously been given by the company to the custodian of their commence
intention. proceedings.
4 & 5 Geo. 5.
c. 87.

5. This Act may be cited as the Trading with the Enemy Short title and
Amendment Act, 1915, and shall be construed as one with the construction.
principal Act; and the Trading with the Enemy Act, 1914, the
Trading with the Enemy Amendment Act, 1914, and this Act
shall be cited together as the Trading with the Enemy Acts,
1914 and 1915.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.